

**CHAPTER xvi.**

An Act to make further provision as to the tolls
dues and charges leviable by the Company of
Proprietors of the Birmingham Canal Naviga-
tions as to the holding of general assemblies
and for other purposes. [29th April 1931.]

A.D. 1931.
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WHEREAS the Company of Proprietors of the
Birmingham Canal Navigations (hereinafter re-
ferred to as "the Company") were by the Canal Tolls
and Charges No. 4 (Birmingham Canal) Order 1894
(hereinafter referred to as "the Charges Order") con-
firmed by the Canal Tolls and Charges No. 4 (Birmingham
Canal) Order Confirmation Act 1894 empowered to
charge and make in respect of traffic on the Birmingham
Canal Navigations the tolls and charges specified in the
schedule to the Charges Order :

And whereas by directions given by the Minister
of Transport in pursuance of section 3 of the Ministry
of Transport Act 1919 and dated the first day of Sep-
tember one thousand nine hundred and twenty the Com-
pany were empowered to charge and make temporarily
in respect of their undertaking the tolls dues and charges
specified in the schedule to the said directions :

And whereas by the Canals (Continuance of Charging
Powers) Acts 1922 and 1924 the Expiring Laws Act 1925
the Expiring Laws Continuance Act 1926 the Expiring
Laws Continuance Act 1927 and the Expiring Laws
Continuance Act 1928 the tolls dues and charges specified

A.D. 1931. in the schedule to the said directions have been from time to time continued in force and will expire on the thirty-first day of December one thousand nine hundred and thirty-one unless further continued by Parliament :

And whereas in order to enable the Company after the said thirty-first day of December one thousand nine hundred and thirty-one to charge and make adequate tolls dues and charges in respect of their undertaking it is expedient that provision be made as in this Act contained with reference to the tolls dues and charges to be charged and made by the Company after that date :

And whereas it is expedient to authorise the Company to hold general assemblies of the Company once only in each year and to make provision as to the payment of interim dividends and the closing of transfer books :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Birmingham Canal Navigations Act 1931.

Interpretation.

2. In this Act the following words and expressions have the meanings hereby assigned to them :—

“ Company ” means the Company of Proprietors of the Birmingham Canal Navigations ;

“ Committee of proprietors ” means the committee of proprietors appointed in pursuance of the Act of the fifth year of William the Fourth chapter thirty-four ;

“ Charges Order ” means the Canal Tolls and Charges No. 4 (Birmingham Canal) Order 1894 ;

“ Minister ” means the Minister of Transport ;

“ Directions of the Minister ” means the directions of the Minister given in pursuance of section 3 of the Ministry of Transport Act 1919 with respect to the Birmingham Canal Navigations

dated the first day of September one thousand nine hundred and twenty; A.D. 1931.

“Authorised tolls” means the tolls dues and charges which the Company are for the time being authorised to charge and make in pursuance of this Act;

“Authorised toll” means any toll due or charge which the Company are so authorised to charge or make.

3.—(1) From and after the thirty-first day of December one thousand nine hundred and thirty-one the tolls dues and charges which the Company shall be entitled to charge and make in respect of traffic on the Birmingham Canal Navigations shall be those which under the provisions of the Charges Order or the Birmingham Canal Navigations Act 1854 the Company were entitled to charge and make with the following additions thereto (namely):—

Tolls dues
and
charges.

(a) An addition of sixty per centum to all such tolls dues and charges except those specified in paragraphs (b) (c) and (d) of this subsection;

(b) An addition of eighty-five per centum to contract systems' tolls (referred to in section 20 of the schedule to the Charges Order);

(c) An addition of seventy-five per centum to the tolls on refuse and rubbish and ashes (referred to in Table A Part I of the schedule to the Charges Order); and

(d) An addition of fifty per centum to the tolls on tramways (referred to in section 39 of the Birmingham Canal Navigations Act 1854).

(2) From and after the said date the directions of the Minister shall cease to have effect.

4.—(1) If at any time after the thirty-first day of December one thousand nine hundred and thirty-two it is represented by application in writing to the Minister—

Revision of
tolls &c.

(a) by any chamber of commerce or shipping or any representative body of traders or any person who is in the opinion of the Minister a proper person for the purpose; or

(b) by the Company;

A.D. 1931. — that under the circumstances then existing the authorised tolls or any of them should be revised the Minister may (if he thinks fit) subject to the provisions of this section make an order revising the authorised tolls referred to in the application or any of them and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until it expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that before making an order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(2) Where upon an application for revision of authorised tolls or an authorised toll an order has been made or the Minister has decided not to make an order no further application for a revision of the tolls or toll to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(3) The provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section as if—

(a) the Minister were referred to therein in lieu of the Board of Trade;

(b) the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or if the said advisory committee ceases to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874; and

(c) in section 4 of the said Act of 1874 the words “under the seal of the Minister of Transport” were substituted for the words “by writing” “under the hand of the President or one of the secretaries of the Board.”

(4) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths. A.D. 1931. —

5. The Company shall keep for public inspection at their principal office a book or list specifying the tolls and charges which the Company are for the time being authorised to charge and make in pursuance of this Act. List of tolls.

6. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 or in section 22 (When general assemblies are to be held) of the Birmingham and Dudley Canals Consolidation Act 1846 the future general assemblies of the Company shall be held once only in each year in the month of February or such other month as the committee of proprietors may from time to time determine. General assemblies.

7. The committee of proprietors may in any year without the sanction or direction of a general assembly of the Company declare and pay out of the funds of the Company applicable to dividend an interim half-yearly dividend on the stock of the Company on account of the dividend for that year to be declared at the next following general assembly of the Company but no such interim dividend shall exceed one-half of the prescribed maximum rate of dividend payable on the said stock. Interim dividends.

8.—(1) The committee of proprietors may close the register of transfers of stock of the Company for a period not exceeding fourteen days previous to the payment of any interim dividend and they may close the register of transfers of mortgages or debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and in the case of any such register they may fix a day for closing the same of which seven days' notice shall be given either by circular to each proprietor or by advertisement in a newspaper circulating in the city of Birmingham. Closing of transfer books.

A.D. 1931.
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(2) Any transfer of stock of the Company or debenture stock or mortgages made during the time when the register of transfers of such security is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the payment of any such dividend or interest as the case may be.

Costs of
Act.

9. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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